

Vinay Kumar Singh v. State of U.P. And 2 Others

Allahabad High Court · Division Bench · 14 January 2020 · WRIT - C No. 43164 of 2019 · **Writ petition disposed of; petitioner directed to appear and file objections before the Executive Engineer, with interim protection from coercive recovery**

HEADNOTE

A recovery citation for electricity theft dues issued in a name distinct from the petitioner's own is not rendered inapplicable to him where he has himself judicially admitted, in an earlier s.482 Cr.P.C. proceeding seeking to quash the underlying theft prosecution, that the name on the citation is his own alias; having made that admission, he cannot resist the citation on grounds of mistaken identity in a subsequent writ petition. Where a citation is issued and disputed without the consumer having been afforded the objection/hearing opportunity contemplated by the U.P. Electricity Supply Code, 2005, the appropriate equitable course is to direct the licensee's Executive Engineer to hear the consumer's objections and pass a reasoned final order, with interim protection from coercive recovery pending that determination and a right of appeal under Section 127 of the Electricity Act, 2003 against any adverse final order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::citation-objection-opportunity

A recovery citation challenged on grounds of mistaken identity, where the petitioner has himself judicially admitted the disputed name is his own alias, must nonetheless be addressed through the Supply Code's objection/hearing procedure before the licensee, not resisted on identity grounds; interim protection from coercive recovery is granted pending that hearing, with a s.127 appeal available against the eventual order

QUESTION

Can a consumer resist a recovery citation for electricity-theft dues on the ground that the citation was issued in a different name, where the consumer has himself admitted, in a prior s.482 Cr.P.C. proceeding to quash the underlying theft case, that the disputed name is his own alias?

HOLDING

No, the mistaken-identity objection is rejected as the petitioner had himself described himself as 'Rajee Pradhan alias Vinay Kumar Singh' in an earlier s.482 Cr.P.C. application seeking to quash the theft-case proceedings, judicially admitting the two names refer to the same person. However, since the citation had been issued and coercive measures contemplated without affording the petitioner a hearing on his objections under the Supply Code procedure, the Court, taking a lenient view, directed the petitioner to appear before the Executive Engineer with his objections and evidence, directed the Executive Engineer to pass a reasoned final order within four weeks thereafter, granted interim protection from coercive action for six weeks or until disposal of the objection (whichever is earlier), and preserved the petitioner's right to appeal any adverse final order under s.127 of the Electricity Act, 2003 — with the citation to stand automatically revived if the petitioner failed to appear. ¶ [unnumbered order \(full text\)](#)

LIMITING FACTS

A citation notice dated 18.7.2019 for electricity theft dues was issued against 'Rajee Pradhan son of Sri Dharmendra'; the petitioner, styling himself 'Vinay Kumar Singh,' claimed no connection with the citation, but the Electricity Department pointed to the petitioner's own admission in a prior s.482 Cr.P.C. application (Application No. 46827 of 2019, seeking to quash the theft prosecution, Special Case No. 98 of 2019) describing himself as 'Rajee Pradhan alias Vinay Kumar Singh'.

PRINCIPLE TAGS

prior-judicial-admission-of-alias-bars-mistaken-identity-defence

A consumer's own prior judicial admission (in a separate proceeding) that a disputed name is his alias precludes a later mistaken-identity defence against a recovery citation issued in that name — an evidentiary/estoppel point in the theft-recovery enforcement context. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM/MERITS OF THE UNDERLYING THEFT-DUES CITATION

Left to the Executive Engineer's determination after hearing the petitioner's objections, with a s.127 appeal remedy preserved.

¶ unnumbered order

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.